

Amendment No. 1 to SB0963

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 963*

House Bill No. 1177

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 33-7-301, is amended by deleting subsection (d) and substituting:

(d)

(1) If a defendant is found to be incompetent to stand trial, any misdemeanor charges pending at the time of the incompetency determination must be retired no later than two (2) years after the date of arrest when the misdemeanor charge or charges have not otherwise been disposed of except that misdemeanor charges must not be retired pursuant to this subdivision (d)(1) if the defendant is restored to competency prior to the date on which the misdemeanor charge or charges would have otherwise been retired under this subdivision (d)(1).

(2) When a defendant whose charges were retired in accordance with subdivision (d)(1) is released into the community, the chief officer shall:

(A) Notify the court of the defendant's discharge; and

(B) Provide the court and the sheriff with an outpatient treatment plan that accounts for the safety of the community.

SECTION 2. Tennessee Code Annotated, Section 33-7-301(c), is amended by deleting the last sentence and substituting:

If a defendant is charged with a misdemeanor offense and remains hospitalized two (2) years after the date of arrest, then the reporting obligations of this subsection (c) must continue until the defendant is discharged.

SECTION 3. Tennessee Code Annotated, Section 52-6-102, is amended by deleting subdivision (e)(2).

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.